

23SMCV02441 23SMCV02441

County: los-angeles

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Case Number: 23SMCV02441 Hearing Date: September 14, 2026 Dept: P

Tentative

Ruling

Hooman

Davoodi v. ABS Shoring, Inc., et al., Case No. 23SMCV02441

Plaintiff's

Motion for Attorneys' Fees

Hearing

Date: September 14, 2026

Background

Plaintiff

Hooman Davoodi ("Davoodi") sued Defendants ABS Shoring, Inc. and Arash Shleimany for breach of written contract, promissory fraud, and accounting, arising out of Defendants' failure to perform the construction work Davoodi hired them to complete at 16770 Charmel Lane, Pacific Palisades, California, 90272.

On June 2,

2023, Davoodi filed the initial complaint.

On

November 8, 2023, Defendants filed a cross-complaint against Davoodi, Group S. Inc., Shahram Shokoufandeh, and Shin Shokoufandeh for breach of contract, breach of the implied covenant of good faith and fair dealing, and unjust

enrichment alleging that change orders increased the cost of the project and that Cross-Defendants' failure to pay the increased cost caused Cross-Complainant's failure to complete the construction.

On

December 29, 2023, Defendants filed a first amended cross-complaint, dropping their claims for breach of the implied covenant of good faith and fair dealing and unjust enrichment.

On May 19,

2025, the Court continued trial to November 3, 2025.

On

November 10, 2025, trial began. On November 21, 2025, trial concluded.

On March 3,

2026, the Court granted judgment in favor of Plaintiff Hooman Davoodi.

On March

4, 2026, Davoodi filed a memorandum of costs.

On March

24, 2026, Davoodi filed this motion for attorneys' fees. On August 3, 2026, Defendant ABS Shoring filed opposition. On September 3, 2026, Davoodi replied.

Motion

for Attorneys' Fees

In an action to enforce a contract that authorizes attorneys' fees and costs to either party, the prevailing party is entitled to reasonable attorney fees and costs. Code Civ. Proc. §1717(a). The prevailing party on a contract is the party who received greater relief in the action on the contract. Where there are multiple defendants and defendants prevail, the plaintiff's claims against each defendant must be considered separately in determining who is the prevailing party or if there are multiple prevailing parties. (Burkhalter Kessler Clement & George, LLP v. Hamilton, (2018) 19 Cal.App.5th 38, 45-46.)

A motion for attorneys' fees must be filed before the time to file an appeal elapses.

The Court has wide discretion in determining what constitutes reasonable attorneys' fees based on its own expertise. (*Hjelm v. Prometheus Real Estate Group, Inc.*, (2016) 3 Cal. App. 5th 1155, 1177.)

The

California Supreme Court has determined the lodestar method is the proper mechanism to calculate attorneys' fees under Code of Civil Procedure section 425.16(c). (*Ketchum v. Moses*, 24 Cal.4th 1122, 1136.) To calculate a lodestar amount, the court must determine the reasonableness of the hourly rates sought. The "reasonable hourly rate" applicable under the lodestar method is the rate "prevailing in the community for similar work." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) "The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case." (*Id.* at 1096.)

Analysis

Prevailing
Party

There can only be one prevailing party in an action on a contract. (Code Civ. § 1717; *Frog Creek Partners, LLC v. Vance Brown* (2012) 206 Cal.App.4th 515, 539.) The prevailing party determination "is to be made only upon final resolution of the contract claims and only by 'a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.'" (*Chia-Lee Hsu v. Maher J. Abbara* (1995) 9 Cal.4th 863, 876.)

On

February 19, 2026, the Court entered judgment in favor of Plaintiff and Cross-Defendant Hooman Davoodi for \$1,297,457.10, plus reasonable attorneys' fees and costs. (Final Judgment, ¶¶ 1-3.) ABS Shoring does not contest that Davoodi is the prevailing party.

Lodestar
Analysis

The

party that seeks payment must “keep records in sufficient detail that a neutral judge can make a fair evaluation of the time expended, the nature and need for the service, and the reasonable fees to be allowed.”² (Hensley v. Eckerhart (1983) 461 U.S. 424, 441 (conc. opn. of Burger, C.J.).)³ The evidence should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended. (ComputerXpress, Inc. v. Jackson⁴(2001) 93 Cal.App.4th 993, 1020.)

Davoodi

request fees for two attorneys, Mr. Paul Reiss and Ms. Fay Pugh. Mr. Reiss has over fifty years of experience and bills \$950 per hour. (Reiss Decl., ¶ 3.) Ms. Pugh has over twenty-five years of experience and bills \$550 per hour. (Pugh Decl., ¶ 5.) Defendant does not contest the reasonableness of Davoodi’s attorneys’ rates. The Court finds that Mr. Reiss and Ms. Pugh’s rates are reasonable for attorneys in the Los Angeles area of similar experience.

ABS

Shoring only opposes Davoodi’s motion for fees to the extent that they contend Mr. Reiss and Ms. Pugh billed for two attorneys where only one was required and to the extent that they billed for hearings that did not occur. ABS Shoring argues that Davoodi has not shown that he needed two attorneys at trial, so the second attorney’s presence was not necessary. In reply, Davoodi argues that two attorneys actually saved money because, had Ms. Pugh not assisted, Mr. Reiss would have had to bill much more time at his higher rate. The court agrees with Davoodi. Trial in this matter lasted two weeks and involved a complex construction contract and change orders. Two attorneys for such a matter is normal.

ABS

Shoring contends that Davoodi’s billing for October 31, 2025, is unsupported because Plaintiffs billed for a status conference that was never held. (Opposition, p. 6.) In reply, Davoodi contends that the entry for October 31, 2025, was cut off due to a clerical error and should read “Trial preparation, research, call with judge,” and submits the corrected billing record. (Pugh Decl. ISO Reply, Exhibit 9.) Considering Davoodi’s reply evidence, the time billed on October 31, 2025, was reasonable.

The Court

has carefully reviewed and considered Davoodi's billing records submitted in support of this motion. (Pug Decl. ISO Reply, Exhibit 9.) The time billed is reasonable and appropriate for this case. The Court therefore GRANTS Plaintiff attorneys' fees in the amount of \$231,985.67.

Conclusion

Davoodi's

Motion for Attorneys' Fees is GRANTED in the amount of \$231,985.67.